

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
ROBERT BENJAMIN,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD SERGEANT JAMES
MCSHERRY, Shield No. 3934, NYPD DETECTIVE
BRETT WOODARD, Shield No. 2619, and NYPD
POLICE OFFICERS JOHN DOES NUMBERS ONE
THROUGH TEN,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above-named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
October 3, 2023

Yours, etc.



Omar T. Russo, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza, 15th
Floor New York, New York
10004 (212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, New York, New
York 10007

NYPD SERGEANT JAMES MCSHERRY, Shield No. 3934; Patrol Borough Brooklyn
North Community Response Team; 211 Union Street, Brooklyn, NY 11211

NYPD DETECTIVE BRETT WOODARD, Shield No. 2619, NYPD 73rd Precinct; 1470
East New York Avenue, Brooklyn, New York 11212

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- X
ROBERT BENJAMIN,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD SERGEANT JAMES
MCSHERRY, Shield No. 3934, NYPD DETECTIVE
BRETT WOODARD, Shield No. 2619, and NYPD
POLICE OFFICERS JOHN DOES NUMBERS ONE
THROUGH TEN,

JURY TRIAL DEMANDED

Defendants.
----- X

Plaintiff, ROBERT BENJAMIN, by his attorneys, Shulman-Hill, PLLC, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On October 18, 2020, at approximately 1:00 a.m., Plaintiff, while lawfully in the vicinity of 316 Watkins Street, County of Kings, New York, was subject to an unlawful stop, frisk, detention, arrest, and excessive use of force by the defendant officers. In addition, Plaintiff assaulted, battered, and wrongfully denied his liberty, held in custody for 30 months in unlawful custody at the NYPD 73rd Precinct, Kings County Central Bookings, and Rikers Island Correctional Facility. Plaintiff was acquitted of all charges by a jury of his peers on or about May 5, 2023. Plaintiff was deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802 and his constitutional, common law and statutory rights when the individual defendants unlawfully stopped, detained, arrested, subjected to Plaintiff to excessive force, and engaged in his malicious prosecution, in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff, Robert Benjamin, is a resident of the state of New York.

3. NYPD Sergeant James McSherry, Shield No. 3934, is and was at all times relevant herein an officers with the New York City Police Department.

4. NYPD Sergeant James McSherry, Shield No. 3934, is being sued in his individual and official capacities.

5. At all times relevant herein, NYPD Sergeant James McSherry, Shield No. 3934, was assigned to the NYPD Patrol Borough Brooklyn North Community Response Team.

6. NYPD Detective Brett Woodard, Shield No. 2619, is and was at all times relevant herein an Officer with the New York City Police Department.

7. NYPD Detective Brett Woodard, Shield No. 2619, is being sued in his individual and official capacity.

8. At all times relevant herein, New York City Police Detective Brett Woodard, Shield No. 2619, was assigned to the NYPD 73rd Precinct; upon information and belief, at the time of the relevant incident, Detective Woodard was a Police Officer bearing Shield No. 27829.

9. New York City Police Officers John Does Numbers One Through Ten are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. Police Officers John Does Numbers One Through Ten are being sued in their individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

13. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.

14. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.

15. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

16. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

17. On October 18, 2020, at approximately 1:00 a.m., Plaintiff was lawfully present in the vicinity of 316 Watkins Street, County of Kings, New York, when the defendant officers unlawfully arrested Plaintiff absent probable cause or legal justification.

18. At the referenced place and time, Plaintiff was leaving a birthday party with scores of other individuals after gunshots rang out.

19. Plaintiff and the other partygoers began to desperately run from the party seeking cover.

20. As Plaintiff ran for safety between several other individuals, he was senselessly tackled from behind by the defendant officers.

21. The defendant officers slammed Plaintiff's head into the concrete.

22. At this point the defendant officers began to arrest Plaintiff, restraining him with unreasonably tight metal handcuffs causing pain and discomfort.

23. Plaintiff was immediately subjected to an unlawful search.

24. In the process of his arrest, Plaintiff tried to explain to the defendant officers that there had just been a shooting and that he and the others were running to safety.

25. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective basis to accuse Plaintiff of committing a crime or violating the law in any way.

26. At no point did the defendant officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

27. Plaintiff did not resist arrest.

28. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by the defendant officers without legal justification or probable cause.

29. Thereafter, Plaintiff was transported against his will to the 73rd Precinct, where he was fingerprinted, photographed, and placed in a holding cell.

30. After approximately twenty-four (24) hours at the 73rd Precinct, Plaintiff was transported to Kings County Central Bookings, where he was again processed and placed in a holding cell.

31. While Plaintiff was in custody, the defendant police officers provided the Kings County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiff committed a crime.

32. Specifically, the defendant officers falsely represented to the Kings County District Attorney's Office that Plaintiff had committed murder and criminal possession of a weapon.

33. On October 19, 2020, Plaintiff was arraigned in criminal court, charged with crimes he did not commit, and remanded to Rikers Island Correctional Facility.

34. Plaintiff would remain at Rikers for 30 months, vehemently professing his innocence and awaiting justice to be done.

35. While at Rikers, Plaintiff suffered greatly, including incidents where he was maced as an innocent bystander, and developing severe anxiety, necessitating prescription medication.

36. Maintaining his innocence, Plaintiff rejected any plea offers conveyed and demanded a trial by jury.

37. On or about May 5, 2023, Plaintiff was acquitted of the false charges against him.

38. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably arresting, confining, and using excessive force against Plaintiff.

39. The unlawful arrest, confinement, and use of excessive force by the individually named defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION**Negligence**

40. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

41. Defendants owed a duty of care to Plaintiff.

42. To the extent defendants claim that the injuries to Plaintiff by the defendant police officers were unintentionally caused and that the force used by the defendants against him was unintentional, then the defendants breached that duty of care by, among other things, tackling and tightly handcuffing him causing physical injury.

43. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

44. All of the foregoing occurred without any fault or provocation by Plaintiff.

45. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

46. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

47. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

SECOND CAUSE OF ACTION**Unlawful Stop, Question, and Search**

48. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

49. The illegal approach, pursuit, stop, and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

50. The conduct of defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

51. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

52. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

53. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION

Violation of Fourth and Fourteenth Amendment Rights:

Unlawful Seizure and Deprivation of Liberty

54. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

55. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

56. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

FOURTH CAUSE OF ACTION

False Arrest/Imprisonment

57. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

58. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York and the United States Constitution. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

59. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

60. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

61. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

62. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights: Excessive Force

63. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

64. The use of excessive force by defendants by, amongst other things, tightly handcuffing him and causing injury, constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

65. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

66. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

67. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff.

68. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

69. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

70. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

71. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

72. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training, and Supervision

73. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

74. The City of New York and its employees, servants, and/or agents acting within the scope of their employment did negligently hire, retain, train, and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

75. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Failure to Intervene

76. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

77. The defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's constitutional rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

78. Defendants failed to intervene to prevent the unlawful conduct described herein.

79. As a result of the foregoing, Plaintiff suffered serious, debilitating, and permanent emotional and psychological injury, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subject to other physical constraints.

80. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

81. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

82. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

83. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, and psychological injuries.

NINTH CAUSE OF ACTION

Violation of Fourth and Fourteenth Amendment Rights:

Denial of Right to Fair Trial/Due Process

84. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

85. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

86. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

87. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

88. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, defendants violated Plaintiff's constitutional right to due process and a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

89. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

90. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

91. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

92. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries including, but not limited to: economic, emotional, physical, and psychological injuries.

TENTH CAUSE OF ACTION
42 U.S.C. § 1983 and New York State Law
Malicious Prosecution

93. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

94. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and the United States Constitution.

95. Defendants commenced and continued criminal proceedings against Plaintiff.

96. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which he was prosecuted.

97. Specifically, despite obvious and readily available evidence of his innocence, the defendant officers willfully forwarded false allegations to the Kings County District Attorney's Office for prosecution.

98. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

ELEVENTH CAUSE OF ACTION
Assault

99. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

100. Defendants, their agents, servants, and employees, acting within the scope of their employment, intentionally, willfully, and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, that such acts caused apprehension of such contact in the Plaintiff.

101. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

102. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

103. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

104. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TWELFTH CAUSE OF ACTION

Battery

105. Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

106. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner tackling and roughly handcuffed Plaintiff, brutally effecting an arrest without his consent and with the intention of causing harmful and/offensive bodily contact to the Plaintiff and caused such battery, and willfully denied him his prescription medication causing worsening physical pain.

107. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

108. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

109. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

110. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRTEENTH CAUSE OF ACTION

Individual Defendant Officer's Violation of Plaintiff's AC 8-802 Rights

111. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

112. The acts of defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

113. The acts of defendant officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

114. The defendant officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing his detention for approximately 30 months in total.

115. By reason of the acts and omissions by defendants described above, Plaintiff has endured psychological and emotional injuries and was otherwise damaged and injured.

FOURTEENTH CAUSE OF ACTION
**Individual Defendant Officer's Failure to Intervene in Violation
of Plaintiff's AC 8-802 Rights**

116. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

117. The acts of the defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

118. Defendant officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

119. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's AC 8-802 rights against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

120. Defendants failed to intervene to prevent the unlawful conduct described herein, and thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

121. By reason of the acts and omissions by defendants described above, Plaintiff has endured psychological and emotional injuries and was otherwise damaged and injured.

FIFTEENTH CAUSE OF ACTION
**City-Employer's Liability for Defendant Officer's Violation of
Plaintiff's AC 8-802 Rights**

122. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

123. Defendant officers are "covered individuals," as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

124. The City of New York, as the employer of the covered individual defendant officers, is liable to the Plaintiff for the wrongdoing of the covered individual defendant officers.

125. The acts of defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

126. The acts of defendant officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

127. The defendant officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing his detention for approximately 30 months in total.

128. By reason of the acts and omissions by defendants described above, Plaintiff has endured psychological and emotional injuries and was otherwise damaged and injured.

SIXTEENTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-802 Rights

129. Plaintiff repeats, reiterates, and re-alleges the foregoing paragraphs as if the same were fully set forth at length herein.

130. Defendant officers are “covered individuals,” as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolman.

131. The City of New York, as the employer of the covered individual defendant officers, is liable to the Plaintiff for the wrongdoing of the covered individual defendant officers.

132. The acts of defendant officers constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.

133. Defendant officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

134. The defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's AC 8 – 802 rights against unreasonable search and seizure and

excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

135. Defendants failed to intervene to prevent the unlawful conduct described herein, and thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

136. By reason of the acts and omissions by defendants described above, Plaintiff has endured physical, psychological, and emotional injuries and was otherwise damaged and injured.

SEVENTEENTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

137. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

138. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of his person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

139. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered physical, psychological, economic, and emotional injuries, as well as a deprivation of liberty.

140. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, psychological, economic, and emotional injuries, as well as a deprivation of liberty.

141. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

126. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff, ROBERT BENJAMIN, demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988 and 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 801 *et seq.*.

Dated: New York, New York
October 3, 2023

By: _____



Omar T. Russo, Esq.
Shulman-Hill, PLLC
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New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, New York, New York 10007

NYPD SERGEANT JAMES MCSHERRY, Shield No. 3934; Patrol Borough Brooklyn North Community Response Team; 211 Union Street, Brooklyn, NY 11211

NYPD DETECTIVE BRETT WOODARD, Shield No. 2619, NYPD 73rd Precinct; 1470 East New York Avenue, Brooklyn, New York 11212

ATTORNEY'S VERIFICATION

OMAR RUSSO, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an associate of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
October 3, 2023



OMAR T. RUSSO, ESQ.